

sequence was not disclosed per se. The board made reference to T.301/87 (OJ 1990, 335), in which it had been decided that if an entity itself was disclosed to the skilled person, this did not necessarily mean that a component part was also disclosed for the purpose of priority if this could not be envisaged directly and unambiguously as such and required considerable investigation to reveal its identity. The board in T.1228/01 held that these findings were also applicable to amendments. It stated that the disclosure in the application as originally filed of the deposition of the recombinant bacteriophage Lgt11-P3 was not considered to be a basis within the requirements of Art. 123(2) EPC 1973 for the disclosure of a DNA sequence designated as "the P3 coding sequence" which was allegedly contained in that bacteriophage, but which as such was not disclosed in the application as originally filed. Thus, the requirements of Art. 123(2) EPC 1973 were not met.

1.10.3 Restricting a generic definition of a substituent to a specific (individual) one

In T.288/92 the board held that it was not permissible to amend a generic formula defining a class of chemical compounds by restricting an originally disclosed generic definition of a substituent to a specific (individual) one which was arbitrarily selected from chemical entities, such as in the examples, without some support for such restriction in the general part of the description (see also T.1537/14).

1.10.4 Multiple arbitrary selection

In T.1919/11 the board considered that the subject-matter of amended claim 1 of the main request (method for producing taxanes) resulted from a **multiple arbitrary selection** of three features (selection of one particular species and of a specific range of silver concentration and a restriction of "auxin-related growth regulator" to "auxin" for the enhancement agent). The board observed that the subject-matter of amended claim 1 related to *Taxus chinensis* only. In contrast, the summarising text of the parent application described the subject-matter as relating to a plurality of *Taxus* species. In addition, any particular mention of *Taxus chinensis* was followed by an endorsement that *Taxus chinensis* might be the best in many issues, but that the important subject-matter of the application equally was the teaching to use any member of the list of *Taxus* species. Some of the examples related to different *Taxus* species and some used *Taxus chinensis* as a model substance to show particular effects of the cultivation conditions. The board concluded that, on this basis, there was no direct and unambiguous disclosure that the subject-matter of the overall content of the application related to nothing else than a method using *Taxus chinensis*.

On unallowable multiple selection, see also above in this chapter II.E.1.6. "Combination of features pertaining to separate embodiments or lists".

1.11. Additions

1.11.1 Addition to the claim of a feature taken from drawings

For examples concerning the insertion of additional features to the claim taken from **drawings**, see below in this chapter II.E.1.13. "Disclosure in drawings".

1.11.2 Addition to the claim of an isolated feature taken from description

For examples concerning the insertion of an **isolated** feature to the claim taken from the **description**, see above in this chapter II.E.1.9. "Intermediate generalisations".

1.11.3 Addition to the claim of features originally presented as prior art

In T.912/08 the board held that an amendment that resulted in features originally presented as part of the prior art, being then presented as the invention could be damaging to the legal security of third parties relying on the content of the original application and added subject-matter contrary to Art. 123(2) EPC.

In T.1652/06 the board drew a distinction as to whether in the application as originally filed the feature in question was disclosed as part of the background art or as part of the invention. In the case at issue, the feature was taken from the background art and could not serve as basis for the amendment (see also T.626/11).

However, in T.293/12 the board distinguished its case from T.1652/06 and underlined that a case-by-case analysis of the structure and content of the description was necessary in order to come to a conclusion for a particular case. In the case in hand, a sentence under the heading "State of the art" was clearly intended to provide the skilled person with a definition of the disease to be treated and therefore related to the teaching of the invention.

1.11.4 Addition to the claim of features previously described as non-essential

In T.583/93 (OJ 1996, 496) the board held that any attempt to interpret Art. 123(2) EPC 1973 such that the introduction into a claim of features previously described as non-essential would not be permissible, had to fail. The Convention contained no requirement that forbade the redefinition of an invention provided that Art. 123(2) and (3) EPC 1973 were complied with. Such a redefinition was often necessary in order to take into account prior art not known to the applicant at the priority date. It was therefore possible that features described as optional at the priority date later became essential in the sense that they were necessary to delimit the invention from the prior art. The introduction of such features was permissible provided that, first, the application as originally filed contained an adequate basis for such limitations and, second, the resulting combination of features was still in line with the teaching of the application as originally filed.

1.11.5 Adding prior art citations to the description

a) General

In T 2321/08 the board came to the conclusion that R. 27(1)(b) EPC 1973, or equivalent R. 42(1)(b) EPC, does not put a stringent obligation on the applicant to acknowledge prior art known to him, and to cite documents known to him reflecting this prior art, already at the time of filing the application. Furthermore, no requirement of the EPC prohibits amending an application in order to meet the provisions set out in R. 27(1)(b) EPC 1973 or R. 42(1)(b) EPC (endorsed by T 1123/09 and cited in Guidelines F-II, 4.3 – March 2022 version; see also T 2450/17).

In T 11/82 (OJ 1983, 479) it was pointed out that the mere addition to the description of a reference to prior art could not reasonably be interpreted as the addition of "subject-matter", contrary to Art. 123(2) EPC 1973. Whether it did so would clearly depend on the actual language used and the circumstances of the case.

In T 450/97 (OJ 1999, 67) the board confirmed that the mere addition of a reference to prior art did not contravene Art. 123(2) EPC 1973. It added that after limitation of the claims, also at the opposition stage, a document which subsequently proved not only to be the closest state of the art, but also to be essential for understanding the invention within the meaning of R. 27(1)(b) EPC 1973 was to be introduced in the amended description. See also T 276/07.

In T 889/93 the appellant (patent applicant) explained that the closest prior art was shown in two figures of the contested application. In his reply to the board's objection of obviousness he submitted that these figures did not show the state-of-the-art device correctly as they were misleadingly oversimplified. The board allowed originally filed drawings to be replaced by better ones since this only removed an inaccuracy in the representation of the state of the art and did not affect the disclosure of the invention per se.

In T 471/20 the board had to decide whether, in the case in hand, the insertion into the description of a new paragraph acknowledging a prior-art document resulted in subject-matter extending beyond the content of the application as filed. The board held that the paragraph in question did not provide a definition to be used when interpreting the claims and that its insertion therefore did not provide the person skilled with any new technical information. A referral of questions to the Enlarged Board was not required to enable the board to decide the case in hand.

See also T 725/05 (addition of a discussion of a prior-art document which went far beyond that document's disclosure) and T 452/08 (added reference to prior art redefined a feature) and chapters II.E.1.14.3 and II.E.1.14.4.

b) Erroneous delimitations from the relevant prior art

In the above-mentioned decision T 11/82 (OJ 1983, 479), the board also held that the (added) delimitations from the relevant prior art should not be incorrect or misleading, otherwise they could indeed alter the subject-matter of the patent. In T 2450/17, the board cited T 11/82, concluding (with reference to T 889/93 and T 1039/93) that remedying this kind of error therefore did not contravene Art. 123(2) EPC.

1.11.6 Addition of advantages and effects to the description

In T 11/82 (OJ 1983, 479) the board stated that the addition of a discussion of the advantages of the invention with reference to the prior art did not necessarily constitute a contravention of Art. 123(2) EPC 1973. Whether Art. 123(2) EPC was infringed depended on the actual language used and on the circumstances of the individual case. See also T 725/05 where the addition of an analysis and discussion of a prior art document which went far beyond the disclosure of said document was considered contrary to Art. 123(2) EPC.

In T 37/82 (OJ 1984, 71), for example, a technical feature was clearly disclosed in the original application but its effect was not mentioned or not mentioned fully. It could however be deduced from the original application on the basis of normal expert considerations. T 434/97 stated that when introducing features not explicitly disclosed, it was necessary that such features could be unmistakably and fully derived from the original text (in this case the parent application); this corresponded to the opinion in T 37/82. In the case at issue the added effect could not be derived from the original text.

1.11.7 Addition/change of claim category

In T 243/89 the applicant had originally claimed a catheter only for medical use; during examination proceedings he filed a further claim for its manufacture. The board saw no reason to refuse the filing of an additional method claim for forming the apparatus, in view of the similar wording and thus of the close interrelationship between both independent claims. Since the result of the activity was in itself patentable, such methods were also patentable unless the disclosure was insufficient.

In T 49/11 the board found that it is well-established that subject-matter is not added by a change of claim category per se. The relevant question to be answered was whether there was a basis for the new claim category. In the case in issue the originally filed product claims were changed to claims to a method of treatment. The board, after analysing the disclosure of the application as filed, concluded that this change of category complied with Art. 123(2) EPC.

1.11.8 Insertion of an ambiguous feature in the claim

In T 792/94 the board ruled that since the teaching of claim 1 as amended was ambiguous (Art. 84 EPC 1973), allowing scope for an interpretation which extended beyond the

overall teaching of the initial application, the amendment contravened Art. 123(2) EPC 1973.

In T 1067/02 the board came to the conclusion that the **unclear** nature of the amendment introduced upon grant in claim 1 as filed, i.e. the introduction of the term "complete", allowed two different interpretations and, although they were both technically sensible, neither of them was directly and unambiguously derivable from the general disclosure of the application as filed. Consequently, claim 1 of the main request extended beyond the overall teaching of the application as originally filed.

In T 2298/09 the board held that, although the alternatives g2 and g3 remained **without a clearly derivable meaning**, it was not disputed that their introduction into claim 1 added information to the teaching of this claim. The group of features (g) encompassing these alternatives could not be ignored when examining these amendments under Art. 123(2) EPC.

See also the related topic "Claim interpretation when assessing compliance with Article 123(2) EPC" in chapter II.E.1.3.9 above.

1.11.9 Characteristic described for intermediate product added to the claimed end product

In T 314/07 the question arose whether the amendment of the claim directed to the absorbent material was directly and unambiguously derivable from a passage of the application as filed not describing the final absorbent material as such but the preparation of the intermediate film used therefor. The particular characteristics of the intermediate film described in the application as filed could be automatically transferred to the final absorbent material only if these characteristics would remain unchanged throughout the process of preparing the absorbent material (see also T 320/10). The board concluded that Art. 123(2) EPC was infringed.

1.12. Errors in the disclosure

1.12.1 Calculation errors

In T 13/83 (OJ 1984, 428), a case decided prior to G 3/89 (OJ 1993, 117) and G 11/91 (OJ 1993, 125) (see chapter II.E.4. "Correction of errors in the description, claims and drawings – Rule 139 EPC" below), the board held that a correction of an erroneous technical calculation was allowable under Art. 123(2) EPC 1973 if the amendment would be regarded by the skilled reader as clearly implied by the disclosure of the application as filed. If more than one arithmetical possibility of correction could be envisaged, the correction chosen had to be the one which the application as a whole clearly implied (see also T 784/96, which cites T 13/83). See also T 1242/07 in which the board found that the correction of an obvious calculation error satisfied the requirements of Art. 123(2) EPC.